

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

IN THE MATTER OF THE APPLICATION)
)
FOR TEMPORARY LICENSURE AS A)
)
MENTAL HEALTH COUNSELOR OF)
)
KATIE PECK,)
)
)
APPLICANT.)

**LICENSURE BY
CONSENT AGREEMENT**

COMES NOW the Iowa Board of Behavioral Science ("Board") and Katie Peck ("Applicant"), and, pursuant to Iowa Code section 17A.10 (2013), enter into this Licensure by Consent Agreement ("Agreement").

1. Applicant answered "Yes" to the question on the application asking whether she had been convicted, found guilty of or entered a plea of guilty or no contest to a felony or misdemeanor crime.

2. The Board has the authority to deny an application for licensure on any ground for which a license may be revoked or suspended. Iowa Code § 147.4.

3. The Board has authority to discipline a licensee for conviction of a crime related to the profession or occupation of the licensee or the conviction of any crime that would affect the licensee's ability to practice within the profession. Iowa Code § 147.55; 645 Iowa Administrative Code rule 33.2(11).

4. **THEREFORE, IT IS HEREBY ORDERED** that the Applicant shall be issued a temporary Iowa license to practice mental health counseling, which shall be placed on probation for the duration of the temporary license. The following conditions and requirements are applicable throughout the probationary term:

- a. Applicant shall abstain from the use of alcohol and drugs unless prescribed by a qualified prescribing practitioner. Valid prescriptions shall be submitted to the Board for purposes of chemical screening, described below in paragraph 4.b.
- b. Applicant shall participate in the Board's chemical screening program, or alternative chemical screening program if approved by the Board. Applicant shall complete enrollment in the Board's chemical screening program within twenty (20) days of license issuance. Applicant shall provide random blood or urine samples when requested. Applicant agrees to comply with all requirements of the chemical screening program and shall be responsible for all costs associated with the program.

- c. Applicant shall attend AA meetings at least one time per week and shall see her therapist on a monthly basis.
- d. Applicant shall meet face-to-face at least once per week with her approved clinical supervisor. Unavoidable deviations from this schedule are permissible, but should be reported in the quarterly reports. Applicant must seek Board approval prior to changing supervisors or the supervision plan.
- e. Applicant shall have a designated worksite monitor. The worksite monitor must hold an active Iowa license to practice mental health counseling and must work on a nearly daily basis in the same office as Applicant. The name of the worksite monitor shall be submitted to the Board within twenty (20) days of license issuance. Any changes in the worksite monitor must be reported to the Board within twenty (20) days.
- f. Applicant, Applicant's clinical supervisor, and Applicant's worksite monitor shall each submit quarterly reports to the Board describing Applicant's compliance with these probationary terms and conditions. Said quarterly reports are due on March 5, June 5, September 5, and December 5 of each calendar year during the probationary period.
- g. Applicant may request early release from one or more of the probationary terms after one (1) year if Applicant has complied with all probationary terms in this Agreement throughout the probationary period. The Board retains the discretion to determine whether or not Applicant should be released early from the probation requirements.
- h. Applicant shall comply with all laws and rules governing the practice of mental health counseling.

5. Applicant shall fully and promptly comply with this Agreement. In the event the Applicant violates or fails to comply with the terms and provisions of this Agreement, the Board may initiate appropriate action to revoke or suspend Applicant's license or to impose other licensee discipline in accordance with Iowa Code § 272C.3(2)(a).

6. This Agreement does not constitute disciplinary action. This Agreement, however, shall be part of the Applicant's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

7. Applicant acknowledges that this proposed Agreement is subject to the approval of a majority of the full Board. If the Board fails to approve this Agreement, it shall be of no force or effect to either party.

8. By entering into this Agreement, the Applicant voluntarily waives any right to a contested case hearing regarding this matter. Once entered, this Agreement shall have the force and effect of a Board order entered following a contested case hearing.

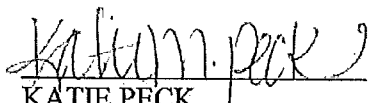
9. Applicant acknowledges that she has read this Agreement in its entirety, that she understands its content, and that she executed this Agreement freely and voluntarily.

10. Applicant acknowledges that she has the right to be represented by counsel on this matter.

11. Applicant agrees that the State's counsel may present this Agreement to the Board *ex parte*.

12. Applicant understands that this Consent Agreement is a public record available for inspection and copying in accordance with Iowa Code chapter 22.

AGREED AND ACCEPTED:


KATIE PECK
Applicant

Dated this 29 day of
May, 2014.


ERIK OOSTENINK, Chairperson
Iowa Board of Behavioral Science

Dated this 19th day of
June, 2014.

Copy to:

Laura Cathelyn
Assistant Attorney General
2nd Floor, Hoover Building
Des Moines, IA 50319
ATTORNEY FOR THE STATE